

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK-----X  
DAVID PREISTER,Index No.:  
Purchased:New York County as the  
place of Trial

Plaintiff(s),

-against-

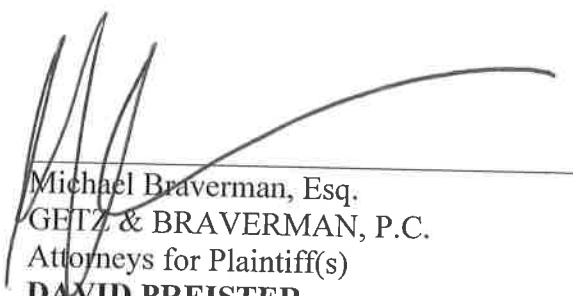
## SUMMONS

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICAH EL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083, The basis of venue is:  
Place of Occurrence  
Plaintiffs reside in the Bronx

Defendant(s),

-----X  
TO THE ABOVE NAMED DEFENDANT:

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York  
June 9, 2017  
Michael Braverman, Esq.  
GETZ & BRAVERMAN, P.C.  
Attorneys for Plaintiff(s)  
**DAVID PREISTER**,  
Bronx, New York 10451  
(718) 993-3000  
Our File No.: 9116

Defendants' Addresses:

**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK  
100 Church Street  
New York, New York 10007**

**NEW YORK CITY POLICE DEPARTMENT  
One Police Plaza  
New York, New York 10038**

**P.O.s MORRIN & CUERVO- both at 6<sup>th</sup> precinct  
223 W. 10<sup>th</sup> Street  
New York, New York 10014**

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

-----X  
**DAVID PREISTER,**

**Index No.:**  
**Purchased:**

Plaintiff,

- against -

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN,  
SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO,  
SHIELD NO. 27083,

Defendants  
-----X

**DAVID PREISTER**, by his attorneys, **GETZ & BRAVERMAN, P.C.**, respectfully  
alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. At all times mentioned, Plaintiffs **DAVID PREISTER**, was and is a resident of Bronx County, City and State of New York.
2. That the cause of this action alleged herein arose in the County of New York, State of New York.
3. That this action falls within one or more of the exemptions set forth in CPLR Section 1602.
4. Upon information and belief, that at all times hereinafter mentioned, Defendant **THE CITY OF NEW YORK**, (hereinafter referred to as "**CITY**"), was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

5. Upon information and belief, that at all times hereinafter mentioned, Defendant **CITY** was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Upon information and belief, that at all times hereinafter mentioned, Defendant **CITY** was and still is a foreign corporation duly organized and existing under and by virtue of the laws of the State of New York.

7. Upon information and belief, that at all times hereinafter mentioned, Defendants **CITY** maintained a principal place of business in the County of New York, State of New York.

8. Upon information and belief, that at all times hereinafter mentioned, **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

9. Upon information and belief, that at all times hereinafter mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, was and still is a domestic corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Upon information and belief, that at all times hereinafter mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, was and still is a foreign corporation duly organized and existing under and by virtue of the laws of the State of New York.

11. Upon information and belief, that at all times hereinafter mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, maintained a principal place of business in the County of Bronx, State of New York.

12. On or about December 26, 2015, at Washington Street between 13<sup>th</sup> and Little West 12<sup>th</sup> Street in the County of New York, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiffs **DAVID PREISTER**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiffs, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

**AS AND FOR A SECOND CAUSE OF ACTION**

13. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "12" with full force and effect as though set forth at length herein.

14. On or about December 16, 2015, at approximately 10:00 pm of that day Washington Street between 13<sup>th</sup> and Little West 12<sup>th</sup> Street in the County of New York the Defendants jointly and severally did place Plaintiff **DAVID PREISTER**, in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

**AS AND FOR A THIRD CAUSE OF ACTION**

15. Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "14" with full force and effect as though set forth at length herein.

16. On or about December 26, 2015, at Washington Street between 13<sup>th</sup> and Little West 12<sup>th</sup> Street in the County of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully seized the Plaintiffs, restrained them and their liberty and then took them into custody to a police station in the County of the New York. The Plaintiff was thereafter held in custody over the course of approximately twenty-four (3) hours thereafter at Criminal Court, Central booking, the Tombs and thereafter at Rikers Island Correctional Facility until he was released on February 8, 2016, on their own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of their confinement.

**AS AND FOR A FOURTH CAUSE OF ACTION**

17. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "16" with full force and effect as though set forth at length herein.

18. On or about December 26, 2015, at Washington Street between 13<sup>th</sup> and Little West 12<sup>th</sup> Street in the County of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully seized, imprisoned the Plaintiff, restrained him and his liberty and then taken into custody and causing Plaintiff to be incarcerated as a detainee in the City of New York's 6<sup>th</sup> Precinct. The Plaintiff was thereafter held in custody over the course of approximately three (3) hours thereafter at Criminal Court, Central booking, the Tombs and thereafter at Rikers Island

Correctional Facility until he was released on February 8, 2016, The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and at all times, the Plaintiff were conscious of their confinement.

**AS AND FOR A FIFTH CAUSE OF ACTION**

19. Plaintiffs repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "18" with full force and effect as though set forth at length herein.

20. Upon information and belief, on or about December 26, 2015 and all times thereafter, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, deliberately and maliciously held Plaintiff **DAVID PRIESTER**, without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

21. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiffs and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.

22. The commencement of these criminal proceedings was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

23. As a result of the malicious prosecution, Plaintiff were deprived of their liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution.

**AS AND FOR A SIXTH CAUSE OF ACTION**

24. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "23" with full force and effect as though set forth at length herein.

25. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE OFFICER MICAH EL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

26. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

27. Plaintiff **DAVID PRIESTER** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

28. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.

29. On or about December 26, 2015, the Defendant, **POLICE OFFICER MICAH EL MORRIN, SHIELD NO. 17028** armed police, while effectuating the seizures of Plaintiff **DAVID PRIESTER**, did search, seize and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff



during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely seized, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

30. On or about December 26, 2015, the Defendant, **POLICE OFFICER JOSEPH CUERVO, SHIELD NO. 27083**, armed police, while effectuating the seizures of Plaintiff **DAVID PRIESTER**, did search, seize and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely seized, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

31. On or about December 26, 2015, the Defendant **MICHAEL MORRIN, SHIELD NO. 17028**, armed police, while effectuating the seizures of Plaintiff **DAVID PRIESTER**, did search, seize and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely seized, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

32. 1As a direct and proximate result of the acts of the defendants, plaintiff suffered severe and permanent damages including, but not limited to:

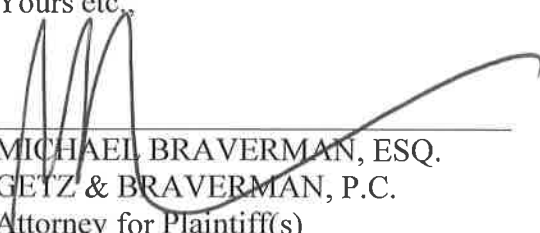
- (a) Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be from an unreasonable search and seizure of his person;
- (b) Malicious Prosecution;
- (c) Shame and Derogation;

- (d) Loss of Freedom and Detention;
- (e) Interruption and Disruption of Daily Lifestyle;

33. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

WHEREFORE plaintiff **DAVID PRIESTER**, demands judgment against the defendants, jointly and severally in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction on all Counts of this action, and on the Count for punitive damages, and reasonable attorney's fees, together with costs and disbursements of this action and such other and further relief that this Court may deem just, proper and equitable under the circumstances.

Yours etc.



MICHAEL BRAVERMAN, ESQ.  
GETZ & BRAVERMAN, P.C.  
Attorney for Plaintiff(s)  
**DAVID PRIESTER**  
172 East 161<sup>st</sup> Street  
Bronx, New York 10451  
(718) 993-3000  
Our File No.: 9016

**ATTORNEY'S VERIFICATION**

**MICHAEL BRAVERMAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **GETZ & BRAVERMAN, P.C.**, attorneys of record for Plaintiff(s).

I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff(s) is/are presently in the county wherein I maintain my offices.

Dated: Bronx, New York  
June 9, 2017

  
\_\_\_\_\_  
**MICHAEL BRAVERMAN**

Index No.  
SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

---

**DAVID PREISTER,**

Plaintiff(s),

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND POLICE  
OFFICER MICHAEL MORRIN, SHIELD NO. 17028 and POLICE OFFICER JOSEPH  
CUERVO, SHIELD NO. 27083,

Defendant(s),

---

**SUMMONS AND VERIFIED COMPLAINT**

---

**GETZ & BRAVERMAN, P.C.**  
*Attorneys for*  
**172 East 161st Street**  
**Bronx, New York 10451**  
**(718) 993-3000**

---

TO:  
Defendants' Addresses:

**CORPORATION COUNSEL OF THE  
CITY OF NEW YORK  
100 Church Street  
New York, New York 10007**

**1 Centre Street  
New York, New York 10007**

**NEW YORK CITY POLICE DEPARTMENT  
One Police Plaza  
New York, New York 10038**

**P.O.s MORRIN & CUERVO- both at 6<sup>th</sup> precinct  
223 W. 10<sup>th</sup> Street  
New York, New York 10014**